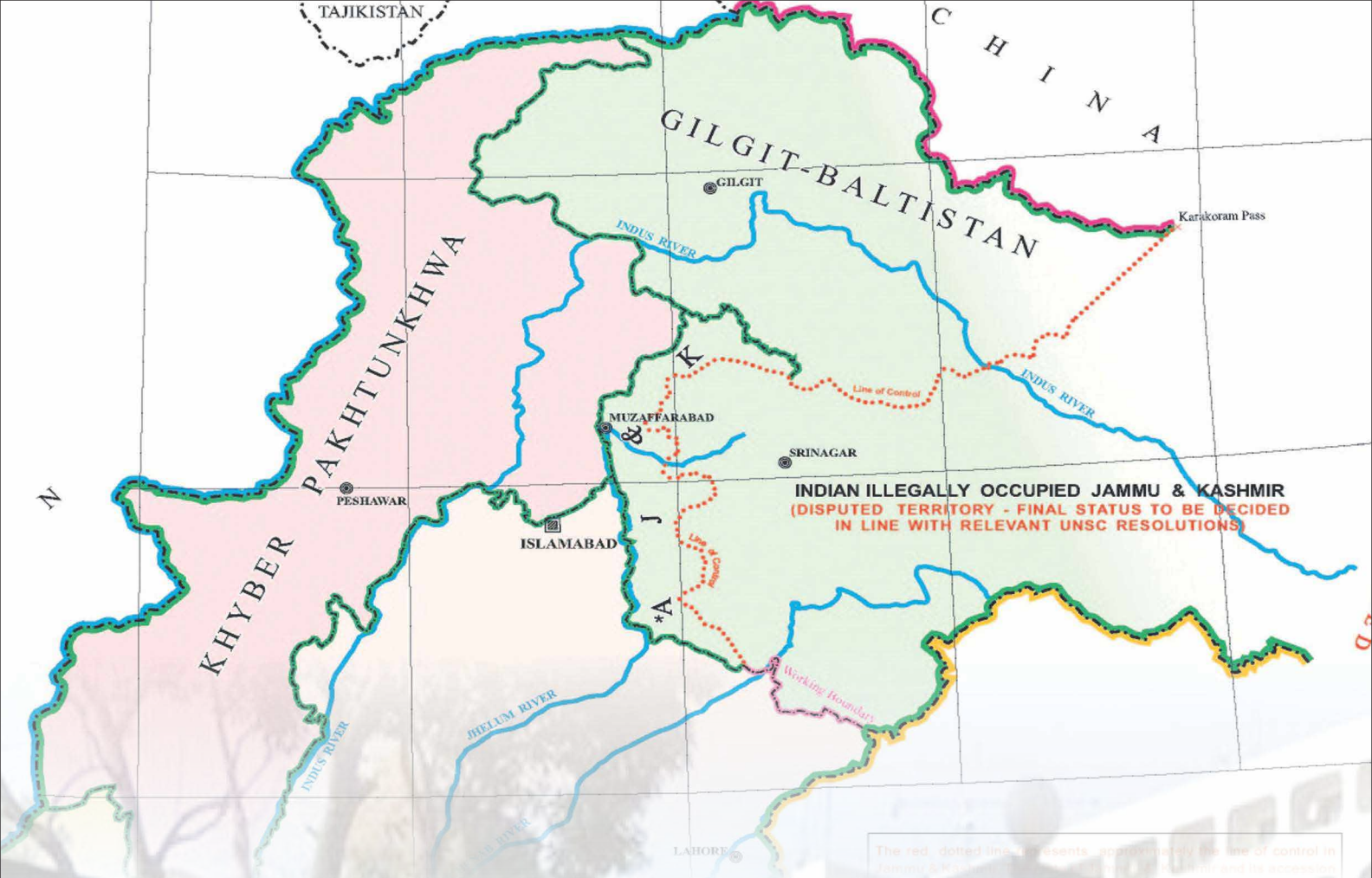
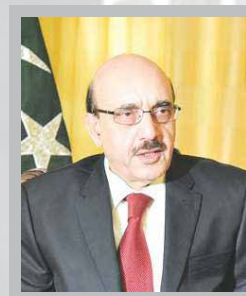




The red, dotted line represents approximately the line of control in Jammu & Kashmir, based on the 1947-48 ceasefire line and its accession.

REWRITE PAKISTAN'S KASHMIR POLICY



Sardar Masood Khan

ABSTRACT

Geopolitics is witnessing a period of historical transformation. The world order led by the West since the end of the Cold War is under stress. The world is inexorably drifting towards ethnic and religious nationalism and diverse manifestations of fascism and parochialism. The influence of the post-1945 World Order, symbolised and steered by the United Nations, is waning. Rules that underpinned that order are being undermined. What we see is flux, turbulence and convulsion. UN Security Council handed down a just dispensation for the solution of the Kashmir dispute in the form of powerful resolutions, albeit under Chapter VI of the Charter. At that time, the US chose Pakistan as an ally and we were perceived to be on the right side of history. Pakistan, in due course, developed this thinking that the world is just and the plebiscite, promised by the UN, was a matter of time. India had other plans. Under the pretence of diplomatic engagement with the UN, it initiated multiple military, political and constitutional processes for the permanent integration of the occupied territory in its state and deluded Pakistan and the international community about its real intent. Hence, a need is felt to review the way our Kashmir Policy has been steered.

Key Words: Post-1945 world order, UN Security Council, Kashmir dispute, Plebiscite, Diplomatic Engagement, Military, Political and Constitutional Processes.



The year is not 1947 nor 1957 nor 1965 nor 1971 nor 1999 when we waged wars or mounted multilateral diplomatic campaigns to liberate the Indian Illegally Occupied Jammu and Kashmir (IIOJK). The Cold War is long gone. Decolonisation came to an end last century, and the number of the ardent advocates of Wilsonian self-determination have dwindled drastically. Very few jurists or states willingly invoke the right to self-determination enshrined in the United Nations' Charter, the covenants, treaties, conventions, declarations and resolutions. The post-Cold War period proved to be a blip on the geopolitical scene. The world is inexorably drifting towards ethnic and religious nationalism and diverse manifestations of fascism and parochialism. The influence of the post-1945 world order, symbolised and steered by the United Nations, is waning. Rules that underpinned that order are being undermined. What we see is flux, turbulence and convulsion.

We wrote our briefs on Jammu and Kashmir in the 1940s and 1950s when the UN Security Council handed down a just dispensation for the solution of the Kashmir dispute in the form of powerful resolutions, albeit under Chapter VI of the Charter. At that time, the US chose Pakistan as an ally and we were perceived to be on the right side of history. Pakistan, in due course, developed this chimerical thinking that the world is just and the plebiscite, promised by the UN, was a matter of time, India had other plans. Under the pretence of diplomatic engagement with the UN, it initiated multiple military, political and constitutional processes for the permanent integration of the occupied territory in its state and deluded Pakistan and the international community about its real intent.

The 1966 Tashkent Summit actualised third party mediation but the net impact of the Tashkent Declaration was a status quo as it promised no process or prospects for the resolution of the Kashmir dispute. The 1972 Simla Agreement, signed after the India-orchestrated separation of East Pakistan and under the pressure to get back our prisoners of the 1971 War, baptised a bilateral dimension on Kashmir. This worked to India's advantage because, though the agreement itself invoked the UN Charter and kept the

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door for multilateral diplomacy on Kashmir open, Delhi through its powerful propaganda machine made the world's foreign offices believe that the Kashmir issue had now become a bilateral issue and that third parties had no role in it. The evil design of the successive Indian governments at that time was to exclude Kashmiris from the Kashmir issue, keep the UN at bay, rule out third party mediation, and in the meantime merge the disputed territory to its state by a ruthless policy of coercion and inducement. The strategy has not worked for India because even after passage of 73 years the loudest slogan chanted in the Kashmiris' houses and streets is "Go India, Go Back".



Nothing much happened on the bilateral diplomatic front between India and Pakistan in the 1970s and early 1980s except for the exchange of angry rhetoric and some odd encounters and meetings. After the 1971 War, India's assumption was that Pakistan should forget about IIOJK; basking in the glory of their 'success', Prime Minister Indira Gandhi had threatened to disintegrate the rest of Pakistan. India's 1974 nuclear explosion code-named "Smiling Buddha" changed the dynamics. Pakistan too was compelled to develop its own nuclear capability for its survival, security and defence. Pakistan thus introduced an equaliser vis-a-vis India and Kashmir remained at the centre of a



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possible casus belli for the next war. By the 1980s, possession of nuclear weapons by both countries was an open secret. The actual equilibrium between the two nuclear powers, however, was demonstrated and established in 1998. The cat was out of the bag.

Incidentally, from 1990 to 1995, Pakistan launched a strong diplomatic offensive to bring Kashmir back on the international agenda by tabling or circulating resolutions on the egregious human rights situation in IIOJK in the UN General Assembly and the Human Rights Commission or by engaging the UN Security Council through communications. This push coincided with and in fact was driven by, India's use of brutal repression on a mass scale against Kashmiris, starting 1989. Pakistani and Azad Kashmir citizens gave assistance to the Kashmiris, whom they considered their compatriots. The United States, for the first time in decades, gave tacit support to the Kashmiri struggle and to Pakistan's position on Kashmir. President Bill Clinton in his yearly address at the UN General Assembly in September 1993 mentioned Kashmir which stunned Indians and literally sent them into a spin. Our hopes were however, dashed later when the US distanced itself from the initiative and a majority of the developing countries decided to stay away fearing that the Kashmir resolution might prove to be a Trojan horse which could be used to target them later. Our effort also foundered because of India's obsequious and unconditional rapprochement with Washington in 1995 that laid the foundation of the new phase of the US-India relations that continues up to this day.

The 1999 Kargil War proved that no conventional war, or even an asymmetric offensive, could be sustained below the nuclear threshold. The moment

Washington and other influential capitals realised the gravity of the Pakistan-India faceoff in Kashmir, they scrambled to avert a wider war which, in their estimation, could have escalated to a nuclear level with dire consequences. Pakistan's thrust was halted by international diplomacy, mobilised at the request of India.

After the Kargil War, and especially the War on Terror, India made a determined effort to equate freedom fighters with terrorists and worked on the US and the UN to help it delegitimise Kashmiri resistance. There is no definition of terrorism crafted by the UN so far, but customary international law dating back to the past century, 1960s through 1980s, gives the people under alien subjugation the right to defend and liberate themselves by all available means, including armed struggle.¹ This legislation in fact prohibits the kind of brazen invasion, occupation and aggression that India undertook in October 1947 and August 2019. But despite the lawfulness of the armed struggle and the legitimacy of seeking material help from other nations, the die is cast against any kind of armed resistance. That said, there are double standards. For instance, in Syria those fighting the Assad regime, of whatever hue, would not be dubbed as terrorists, or in 1971, Mukti Bahini was "legit" but Kashmiri Mujahidin fighting Indian state-sponsored terror in the 1990s were "terrorists". Occupying powers like India proscribe the doctrine of legitimate armed struggle and help from outside, to suppress their colonial subjects in IIOJK, whereas large federal states look askance at the concept, apprehending that this could unleash centrifugal forces. In addition, a comprehensive definition of terrorism will include 'state terrorism' being practiced by India against Kashmiris and its other citizens such as Muslims, Christians, Sikhs, Dalits and tribal population.

The off and on charade of bilateral talks, laced with a raft of confidence building measures, did not end the scourge of killings, blindings, forced disappearances and molestation of Kashmiris. Pakistan was talking to the Indian leaders whose hands were drenched with Kashmiris' blood

In the past, we had made a fatal mistake by agreeing to bilateral talks with India. Very cleverly, by negotiating a broader Pakistan-India agenda, which included Kashmir as one agenda item, Delhi had already diluted the importance of the Kashmir issue. In the last bilateral agenda that was agreed between India and Pakistan in December 2015, Kashmir was one of ten agenda items and theoretically it was equivalent to 'religious tourism'. India used the bilateral process only as a ruse to gain time and diffuse and deflect Pakistan's attention. The off and on charade of bilateral talks,



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The game plan changed completely in 2014 with the ascendancy of the Narendra Modi-led Bharatiya Janata Party (BJP), backed by the Rashtriya Swayamsevak Sangh (RSS) and other violent extremist Hindu nationalist organisations. They changed the playbook. They announced they would take away IIOJK's cosmetic autonomy and the symbols that went with it; the Assembly, flag, constitution and rescind Kashmiris' rights that protected their citizenship, land, property, livelihoods, jobs, education. After total disenfranchisement of the Kashmiris, they have turned their disputed territory into a vassal state, a colony. Today, the population does not even have the rights it used to enjoy under the despotic rule of the Maharajah Hari Singh or the rights Indians used to have before the British left the subcontinent in 1947.

There are six major ominous developments. One, after abrogating Article 35-A of its constitution that recognised the inherent rights given to the Kashmiris in 1927, India has issued (at the time of the writing of this piece) more than 1.2 million domicile certificates to non-native, non-Kashmiri Hindus from all over India. Their prime target is to import millions

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more to change the demographic composition of the state within two to three years. Second, they have opened ways to rob Kashmiris of their 480,000 jobs which were previously reserved for them. Third, they have delegitimised the bulk of the Kashmiri businesses, especially in the construction industry under a dubious environmental protection law. Economic exploitation of the Kashmiris, particularly of their mineral wealth and forests, is in full swing. Some wily, incommunicado outsiders are running this scam. Fourth, the occupation forces have been authorised to declare any part of IIOJK 'strategic' and then start construction of new housing colonies there for armed personnel and civil servants, retired or serving, their families and hundreds of thousands of new settlers. Fifth, Kashmiris are being killed in large numbers. Every day young men are gunned down in fake encounters or cordon and search operations. Sixth, India targets our civilians across the Line of Control causing death and devastation.

The world's reaction to India's crimes against humanity, genocide, war crimes, and ethnic cleansing, has been mixed. The world media, prominent parliamentarians in the Western world, think tanks and human rights organisations have called out India and expressed their solidarity with the people of IIOJK. The incensed Pakistani-Kashmiri diaspora has changed the Kashmir cause into an international movement. China, Turkey, Malaysia, Iran and some Western countries have castigated India and spoken out for the Kashmiris. But a majority of the governments have either kept

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silent or they have issued ambiguous, non-committal statements. Some of our radiational friends in the Arab world have been busy appeasing India and in fact rewarding it for its behaviour which has caused dismay among people. The West has not held India accountable.

Despite these barriers, Pakistan has done well in making the most of the opportunities thrown its way whether it was in the form of holding of informal consultations in the Security Council, getting support of the OIC in Jeddah or reaching out to heads of state/government and foreign ministers of scores of countries. India's reputation and image as a state took the biggest hit in recent years. Taboos against calling out India have been broken all over the world.

And yet, for all intents and purposes, India gets off scot free. It is a rogue state that seeks exceptionalism even in regard to its proven, unpardonable crimes in Kashmir.

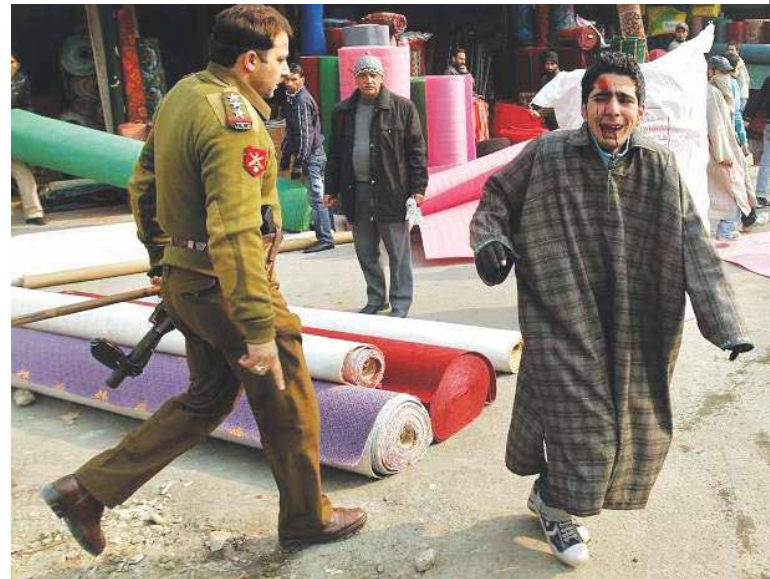
Because of the ongoing depredations of Hindutva, the game has become much bigger than Kashmir. The BJP-RSS combine is targeting its Muslim population for ethnic cleansing and it has vowed to fulfil its dream of Akhand Bharat by demolishing its neighbours, especially Pakistan.

The world used to worry that extremists, especially religious extremists, should not get hold of nuclear weapons. This has already happened. Narendra Modi has twice threatened Pakistan with nuclear annihilation; and India's Defence Minister has teased a First Use, out of its policy of No First Use (NFU) of nuclear weapons. This is beyond nuclear signalling. Make no mistake about it: the zealots may resort to nuclear warfare. The world should not take such conduct or pronouncements lightly.

President Donald Trump's full-hearted support of Israeli Prime Minister Benjamin Netanyahu's plans to annex the occupied West Bank and the recognition of Israel by the United Arab Emirates and Bahrain are reshaping the political fault lines in the Middle East. The Israeli agenda's comparison with

Kashmir is alarming for two reasons. First, India would accomplish its plan for illegal settlements in IIOJK in just two to three years what took Israel decades to do since the occupation of the Palestinian territory. Secondly, India has first annexed the territory and then started constructing illegal settlements, with no barrier in its path.

It is important to understand that every country is absorbed in its own problems. In the UN and other multilateral forums, bloc politics rules the roost. Collective security and dispute settlement have taken a back seat. Nations tend to make decisions on the basis of bilateral or group transactions. Issues are not addressed on merit or the seriousness of a problem but on the basis of the strategic priorities of the most powerful nations. The system dealing with peace and



security is broken but nobody dares say it out loud. If the UN system created for the maintenance of peace and security would have been functional, after the developments on August 5, 2019, the Security Council or the UN Secretary General would have intervened invoking the Charter's Article 33 (negotiation, mediation, arbitration), Article 34 (dispute investigation), Article 36 (resort to International Court of Justice) or Article 37 (recommending appropriate terms of settlement). It did not lift a finger. In fact, the situation in IIOJK is so grave that the Council should have

The multilateral system will not deliver on its own or even put pressure on India unless there is pressure from outside, from the First Avenues of the world



The baton of leadership should be passed consciously and systematically to youth. More than 64 percent, or roughly 140 million people in Pakistan are below the age of 30. The future of Pakistan belongs to them. Let's make them part of the endeavours to build Pakistan and liberate Kashmir

convened urgent meetings, under Articles 41 and 42, to make a direct intervention in order to stop India's aggression and save Kashmiris.

Against this backdrop, how would we rewrite our policy and how should we revamp our strategy?

We should stay the course as far as our traditional diplomacy is concerned, be it multilateral or bilateral. Our work with the UN Security Council, the General Assembly and the Human Rights Council must continue. During the annual session of the UN General Assembly, attended by the Presidents and the Prime Ministers, its platform is particularly effective in reaching out not only to governments but to hundreds of millions of citizens across the globe. The pathways to these multilateral forums however, should be deepened and widened. Because of our entanglement with the non-productive bilateral processes, we have lost space in these forums. We would need a lot of grit and ingenuity to fill up that gap. Nothing is assured in these forums despite our best efforts but, there is one unwritten rule in multilateral diplomacy: perseverance opens the doors even for the weakest.

We also need to expand the definition of multilateral diplomacy. The Indian crimes against humanity in IIOJK are within the jurisdiction of the Fourth Geneva Convention, Additional Protocol I, the Statute of International Criminal Court and dozens of treaties covering excessive use of force, killings, arbitrary detentions, torture, enforced disappearances, discrimination against women and many more. We ought to work more actively with the states which are party to these treaty bodies.

Article 2 of the Genocide Convention states “... genocide means acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, ...”. It has to be a special intent or *dolus specialis*, to destroy a people and India is doing precisely that in IIOJK.

Similarly, the potential of the Inter-Parliamentary Union (IPU) must be tapped. World parliamentarians assembling for IPU plenaries and committee meetings, or during their conversations in corridors, can help in mainstreaming Kashmir in the international agenda.

But there is a catch here. The multilateral system will not deliver on its own or even put pressure

on India unless there is pressure from outside, i.e. First Avenues of the world. The Kashmir struggle and India's oppression have reached a stage where only voices from the squares, streets and highways can create a critical mass and a critical pitch that would influence decision-making in the United Nations and stay the hand of the occupier in IIOJK. Let us call it international civil society movement on Kashmir, and this movement should be like anti-Vietnam War and anti-Apartheid campaigns or like American civil rights movement.

Despite the clamour and condemnation over Indian actions, there is no accountability of the perpetrator of the crimes in IIOJK. That's why, it is imperative that we help start a Boycott, Divestment and Sanctions (BDS) movement against India. This is feasible. It has worked in regard to Palestine or against fossil fuel in the context of climate change. Why can't it work for Kashmir? It will.

We will also have to define the international community more broadly. It should include the diaspora, the media, and civil society. Let's call it people's diplomacy or people-centred diplomacy.

Our 10-million strong diaspora community is involved but not fully. There is a lot they can do with the help of their networks of friends. Pakistanis and Kashmiris abroad are politically active, many now have representation in parliaments and councils and they are economically well-off. They seek leadership, not in terms of any quid pro quo but in regard to connectivity. These community representatives should be invited to work with local media and think tanks of their countries.

The baton of leadership should be passed consciously and systematically to youth. More than 64 percent, or roughly 140 million people in Pakistan, are below the age of 30. The future of Pakistan belongs to them. Let's make them part of the endeavours to build Pakistan and liberate Kashmir.

India is planting false narratives in the new and traditional media, as well as in parliaments, banking institutions, corporate world, think tanks and policy forums. We have by now the wherewithal to counter this offensive. The youth, seething with anger at India's hate-Pakistan agenda and atrocities in Kashmir, is keen to plan and act proactively.



IIOJK should be considered part of Pakistan's state under Indian occupation, not a distant disputed territory which merits serious but only periodic attention.

Pakistan's nuclear conventional deterrent against India is credible but, no threshold is high enough to counter existential threats emanating from India. Therefore, continued investment in full spectrum response capability, keeping in mind India's maddening arms shopping spree and its induction of Ballistic Missile Defence (BMD) system is imperative. At the same time it is necessary to give ideological and physical training to young men and women to prepare them for the future challenges.

Our Kashmir policy should flow from a larger vision for a strong, secure and prosperous Pakistan. In

this vision, we will put economy at the centre. No wheel for national power and prowess, including defence, will move without a strong economy. With our 80 million plus middle class (Forbes' figure, 2015), we should be in a position to look towards more stable and progressive economic growth and burgeoning national strength of Pakistan. To achieve these objectives, we need to inject adaptability in our strategic agenda. And we must remember that great nations are crafted, not born.

Sardar Masood Khan is the President of Azad Jammu & Kashmir and Pakistan's former Ambassador to China and the United Nations

NOTES

1. See UN General Assembly Resolutions 1514 of 1960 and 3314 of 1974.

